Collective Trauma Summit 2022

CREATING A GLOBAL HEALING MOVEMENT

Restorative Justice: From the Paradigm of Punishment to Ecosystems of Healing

FEATURED SPEAKER

sujatha baliga | Restorative Justice Facilitator and Public Speaker

HOSTED BY

Thomas Hübl | Host, Teacher, Author of *Healing Collective Trauma*, and Founder of the Academy of Inner Science

Thomas Hübl: Welcome back to the *Collective Trauma Summit*. My name is Thomas Hübl, and I'm the convener of the Summit, and I have the great honor and pleasure to welcome Sujatha Baliga. Sujatha, welcome. I'm so happy you're here with me, and a warm welcome to you to the Summit.

sujatha baliga: Thank you so much for having me.

Thomas: I'm looking forward to our conversation, and I think we do have some passions in common and I would love to explore some of them deeper with you. But to start us off, I think it's always interesting to see what's the correlation between our calling and our life journey, or maybe sometimes our own trauma journey.

And by mastering part of our own trauma journey, we actually develop the potential to serve the world in a different way, or in a deeper way. And I wonder what in you brought you to do what you do and to be passionate and energetic as you are? What called you? And how did restorative justice find you? Or anything that you are passionate about today? So maybe you can speak a bit about your journey.

sujatha: Well, thank you so much for this beautiful question, it's such a wonderful way to open. I think about a lot my Indigenous friends, who always start any kind of collective thing with a discussion of their lineage and what brings them to the room today, right?. And so in a sense, mine is a spiritual lineage, one that I'm incredibly grateful and ...

The serendipity with which I landed in the direction that I've been going for the past 25, 30 years now comes from a painful place. It starts in a very painful place. And I know that the audience can handle this information, they would not have signed up for a *Collective Trauma Summit* if they did not know that they would be hearing about some trauma.

So my personal trauma involves having grown up primarily in a small town in a rural part of the United States in Pennsylvania. Very Appalachia-adjacent, or Appalachia, depending on how you pronounce it, and really isolated and experiencing a lot of harm, both inside and outside of my home. I was the only child of color in my school and was experiencing a lot of racist bullying and violence, really.

I think bullying sometimes downplays the severity of what it is that I endured. And in my own home, I was being sexually abused by my father who was also quite emotionally abusive to others in my family. And that trauma ... He passed away when I was 16-years-old and we were never able to have any sense of healing or justice before his death.

But what I did was I channeled my rage about what had happened to me into victim advocacy, and so eventually I thought I would go to law school to become a prosecutor. But just before beginning law school, I was living in India, again, working with my then boyfriend, trying to work with him with trafficking survivors; girls who had been taken from Nepal and being sold into sexual slavery in Mumbai.

And I had a complete breakdown, went on a somewhat suicidal backpacking journey into the Himalaya where through an amazing course of events ... Guided me towards sort of unpacking what I was carrying psychologically through their own honest sharing of their own traumas in their escape from Tibet, from Chinese occupied Tibet, and suggested that I write a note to the Dalai Lama asking him about forgiveness in the face of interfamilial harm.

And so I wrote a note, tore a page out of my journal, dropped it off at his monastery—his office—his residence, and a week later received a response that I was going to be offered an hour-long private audience with the Dalai Lama. So I am 24-years-old, a very lost and enraged and confused child— that prefrontal cortex

© 2022 by Inner Science LLC. All rights reserved. No part of this recording or transcript may be reproduced or transmitted in any form or by any means, electronic, mechanical, recording, or otherwise, without prior written permission of Inner Science LLC.

had surely not finished cooking—and I was really, really a very angry and very difficult person back then.

And for God knows what reason, the Universe knows what reason, I was given this beautiful opportunity to sit with His Holiness for an hour and really grapple with what he had been through when he was a 24-year-old, escaping the country that he was destined to lead. And through that dialogue, really, had deeper understanding of forgiveness and of justice and of what those things might look like in my own life.

I followed his very sage advice about how I might want to reign in my own mind and begin practicing meditation, and through following his advice, changed the entire trajectory of my life. Ended up actually becoming a defense attorney and ultimately working on capital cases, even death penalty cases, and cases of people who had been accused of doing what had been done to me.

And in that journey ended up following one of the pieces of advice he had given me, which was to find some way to open my heart to the people that I consider my enemies. And so that really changed the whole trajectory of my life, and what a blessing it's been. I don't know. It ultimately led me to restorative justice in that my work as a victim advocate really just looked at one side of things.

And then when I was working as a defense attorney, for the most part I also was only looking at one side of things, and restorative justice invited me into a new space, one in which we could think ... What I like to call "holding with equal partiality all those affected by harm". Those who've caused harm, those who've experienced it, and their families and communities.

And so that for me was really the selling point of restorative justice, that there was a place in which we could heal all of us. Because when I look back on my childhood, that's surely what I wanted for my own family. As much as I wanted what my father was doing to stop, I would've never wanted him incarcerated. I would've never wanted harm to befall any of us. And so that really drew me to this idea of restorative justice.

Thomas: It's lovely to hear how the blessing of your soul ... Because I believe that resources are being drawn into our life because of our inner resources, and how you actually really took that blessing of meeting His Holiness into your life, into service. I think that's really beautiful. And I think that's often how, that when we experience healing, how it opens our hearts to serve more.

And your life journey seems to be obviously a pretty beautiful example of that, that you channeled that into serving the world. It's beautiful. It's lovely to hear. Also you

© 2022 by Inner Science LLC. All rights reserved. No part of this recording or transcript may be reproduced or transmitted in any form or by any means, electronic, mechanical, recording, or otherwise, without prior written permission of Inner Science LLC.

already connected it to the restorative justice. So let's start there and then maybe I'll come back to what you said. Say a few words about restorative justice so that everybody for whom it might be a bit new or doesn't know the principles, maybe you can set the frame and then I have a few questions around ...

sujatha: Sure. Deeply influenced by someone who's known as the grandfather of restorative justice, His name is Howard Zehr, Z-E-H-R, and he's become like an uncle to me. He's a grandfather, I think, to the movement, but for me really has become an uncle. The way he frames restorative justice—he's one of the seminal thinkers in the field, and I think actually is credited with coining the phrase or first defining it—and he really defines it as a paradigm shift in the way in which we think about harm and wrongdoing.

Juxtaposing it with the current criminal legal system, or the ways in which we think about justice, particularly from a western frame, as this very punitive system that asks what law was broken, who broke it, how shall they be punished? And we think about it in the school discipline context: what rule was broken, what child broke it, how should they be punished for it? And punishment really being the infliction of pain in order to teach a lesson.

The paradigm shift that restorative justice calls us to inadvertently issues punitiveness by centering the person who has experienced the harm. So instead of starting with what law was broken—which is really a question of systems of control—the first question is, who was harmed? What do they need is the second question. And then what creates the justice paradigm is the third question which is, whose obligation is it to meet those needs?

And so, meeting the needs doesn't require pain. It may be experienced as uncomfortable. When I cause harm and it is my duty to make things right, that might be uncomfortable. I may have to return the thing I've stolen, and I may not want to do that, right? But it's not inflicting punishment for its own sake. And so this is the paradigm shift that restorative justice calls us to. It centers harms and needs and obligations, and also addresses causes, root causes. How did we end up here on all fronts?

And by including family and community in these conversations, ideally, ideally we are bringing together the person who has caused the harm and the person who's experienced it for a dialogue where they are well supported by family and community and loved ones. People who are well resourced to sit in that circle, in that conversation, in that conference, to help come up with a plan to repair the harm, and that plan needs to look at root causes as well.

© 2022 by Inner Science LLC. All rights reserved. No part of this recording or transcript may be reproduced or transmitted in any form or by any means, electronic, mechanical, recording, or otherwise, without prior written permission of Inner Science LLC.

And so this goes far beyond anything that our current systems of punishment and blame and separation really do to us. It's calling us in a whole new direction, or a whole old direction if you look at certain communities that have done this since time immemorial, right? That this was the way that you would heal a thing, to make things right.

Thomas: I love that, "in a whole old direction." That's a great sentence for surfacing some of the principles that were there for thousands of years already. And you said something I want you to expand a bit on. You said "people in the circle that are well resourced." Can you tell me a bit about "well resourced"?

sujatha: What a beautiful question. I'm going to try to stop saying that after each one of your questions. So there are different types of resources that all of us bring. When a harm has occurred it was never just that one person's cause. I've never solely caused the problems that are existing in my life, nor am I the sole solution to them. Everything requires collectivity to heal.

And there are many gifts and skills that people can bring to a circle or to conference, and there are also many blind spots and deficits that also need to be brought out into the circle. And so the people in the circle may have different things that they can offer, vantage points that they've seen in each person's life.

The severity of the harm, how it's landed on someone. Let's say that I've been harmed and I'm incapable of saying how badly it's impacting me, but my sister can see. To have her in the circle can really help the person who's harmed me understand the severity of the harm that's occurred, right?

And in the same way, I once facilitated a dialogue between parents of a girl whose life was taken and the young man who took her life, and the father of the boy who took her life took responsibility for having taught his son about rage. Having taught his son, as he said, "I taught him how to be this angry and we didn't teach him how to manage his emotions."

These kinds of things, we need all of those voices in the circle. So that is a resource as well when you think about it, really being able to identify root causes and harms. So it's not all the positive stuff.

It's not just that Uncle Sam has an auto body shop where the kid can get a job to come up with the money to pay back the person that they stole from. That's a wonderful material resource and we do want that Uncle Sam in the circle, but there are other resources, too. And so having everyone who's both directly impacted and also those who seem more tangential sometimes are the people that bring the

© 2022 by Inner Science LLC. All rights reserved. No part of this recording or transcript may be reproduced or transmitted in any form or by any means, electronic, mechanical, recording, or otherwise, without prior written permission of Inner Science LLC.

special sauce that makes the dish really beautiful, makes the circle really grow.

So there's emotional resources. There is the ability to sit in the fire and listen to really hard things. You're going to need a couple of those people. You need people who have a peacemaking heart. You definitely don't want to include the people who like to stir things up and make them worse, right? So we spend a lot of time mapping people's family and community structure.

Who's been there for you? Who's believed in you? Who co-signs your worst behavior? Let's exclude that person. Who likes to stir things up? Let's maybe not invite that person. And trying to create the right group of people that will bring everything that's needed to help move forward in a good way. Help move forward in a good way.

Thomas: So what I hear is that it's a curated process, basically, that needs a lot of preparatory work, yeah?

sujatha: Yeah, that's primarily true. I mean, it moves a lot faster than one might suspect. You can do two or three meetings in advance of bringing everyone together. I think that too much curation actually takes the beauty out of it and the power out of it, and it professionalizes it in a way that I think is actually not beneficial. One of the things we want people to understand in a restorative process is that ...

There's this thing we say here in the States, "We got us. We got us, and we don't need state intervention. We don't need the professionalization. We actually have everything that we need right here in our family and community in order to make things good." So that's one of the things we wanted people to understand.

Thomas: I have one more question that I think many people might ask is ... There's the punitive aspect of incarceration, for example, or the law system. But then on the other hand, people might say, for example, as you said in your own example, the person that took another person's life. So how does restorative justice make sure or create the safety that these kind of things are not repetitive?

Because we could say, or at least that's also how I look at the things, that often trauma is at the root of any kind of violent act. So there is a pre-traumatization already there, and in many ways trauma is repetitive. So if a person that got triggered heavily and committed a crime, how does it ensure the community that that's not going to happen again? So maybe you can speak a bit to ... Because I think that might be one of the main concerns, also, in a community.

© 2022 by Inner Science LLC. All rights reserved. No part of this recording or transcript may be reproduced or transmitted in any form or by any means, electronic, mechanical, recording, or otherwise, without prior written permission of Inner Science LLC.

sujatha: Absolutely. In thinking about what we call recidivism here in the United States, like repeat offenses, people causing harm again and again, what's interesting is that I think we have a false belief that our current punitive systems actually make us safer. They actually don't. If anything, I think they're bound to make us less safe. When we walk into any prison, you could say, what kind of situation is this here that would cause us to think that anybody would come out of here in a better condition to turn their life around?

So what we've seen actually in our studies with young people, in my previous organization at Impact Justice, working with young people who've committed some pretty serious offenses—what are labeled felonies here in the US—we found that in doing a comparative analysis between kids who go through the system, the regular system of justice versus going through restorative justice, we've seen a 44% reduction in recidivism.

So it's actually in the public interest to be doing restorative justice instead. Moreover, we've seen a 91% satisfaction rate amongst crime survivors. So this to me says a lot, right? And unfortunately we're not able to do a comparative analysis because the legal system does not keep track of data of the satisfaction of people who have experienced harm. It presupposes that its own conviction rate is the thing that survivors want. But if we really just sat down and talked with survivors about what do we really want, a conviction rate was the ...

I didn't want my father convicted at all. Why would you assume that that is what I needed? I needed a whole lot of other things, and that was not one of them. And so a big part of what draws me to this work is knowing that that is true of most crime survivors. That we have a whole lot of needs for healing, and one of them is to be assured that this person won't do it again. And so restorative justice has a way better track record on that front than our current systems.

Thomas: So what do you think is or are the deciding factors that can change perpetrators' interior architecture in order to come to a restoration themselves? And from there, what are the factors? Because I think that's what many people might be concerned about, that that's not going to happen and that there is a threat around us. And you said, okay, on the long term there, we see the data shows us something else.

But I think that the fear of many people might be more immediate. And so what do you think are or do you know are the factors that help to create a restorative process that will eventually lead to a change? How do you as somebody who facilitates these processes really know, understand that that's happening? So maybe you can speak a bit to that.

© 2022 by Inner Science LLC. All rights reserved. No part of this recording or transcript may be reproduced or transmitted in any form or by any means, electronic, mechanical, recording, or otherwise, without prior written permission of Inner Science LLC.

sujatha: There's two things that I would start with. First is that we don't ever use words like perpetrator or offender or rapist or murderer. They feel like poison coming out of my mouth. And one of the reasons is that in order to help someone move beyond a moment in their life in which they caused harm, we have to build in them a fundamental belief that that is not who they are.

So one of the most important things is locating people in this person's life who has known them for a long time, who can see the goodness within them, and who helps call them back to their true self. So that's a piece of the work. Another thing that is really instrumental is actually the face-to-face meeting with the person that you harmed, and understanding the impact of your behavior.

When we approach things from a place of punitiveness, questions of the criminal legal system, what law was broken? Who broke it? The focus is on the person who's caused the harm, and that puts them in a defensive position against the system. It causes people to say, "Uh-uh, I didn't do it." Especially when, as in here, the consequences of saying that you stole a car could be six years, eight years, nine years in prison.

I have a friend who, starting at the age of 16, served nine years in an adult facility because of taking someone's car. So this kind of thing makes you go, "I didn't do it." And "I didn't do it" when you did is literally the opposite of what we need in order to help people move in the direction of change. And so unconditional love does not have to be soft.

And so really welcoming someone instead of starting with shaking your finger ... I am not saying that there is not a healthy amount of finger shaking that absolutely has to happen. I leave that to the grandma. I leave that to somebody else to say to their own child in these own preparatory sessions, being like, "That is not how we do in our family."

It's better than some external authority figure who the person can really reject. But somebody that they care about being like, "You know better than this. We taught you better than this." Or, "I didn't teach you better than this. How can we turn this around now?"

And so those kinds of things, I really see a lot of change in people. People, again, coming back to the question of resources, it is patently unfair to ask people to be responsible for the things that they've done when they've done them out of a place of desperation, which is a lot of crime that happens in the United States.

© 2022 by Inner Science LLC. All rights reserved. No part of this recording or transcript may be reproduced or transmitted in any form or by any means, electronic, mechanical, recording, or otherwise, without prior written permission of Inner Science LLC.

And so I think that it's a very difficult moment, I think, in the restorative justice movement for us to figure out, how do we call people to account for their individualized harm when there's been massive amounts of structural oppression that has given rise to most of the harms that occur? And so one of the things I think are really important is for us to figure out how to resource the people who've caused harm.

We don't have universal basic income. We don't have universal basic services. We don't have health insurance. I mean this is a true fiasco, right? And so to ask people to be responsible when the world has always let them down, there's going to have to be some piece of it that includes supporting a person, giving them a basic ground to stand on before they can be in a position to make things right.

That's a lot to put on the restorative justice facilitators; to correct for all that is wrong with the United States before asking someone to be responsible is too much to ask right now. And at the same time is something that I think we should be aspiring towards. Like, what kinds of systems can we create? If we are creating, as I like to call it, off-the-grid restorative justice processes where instead of criminalization, we are doing this in lieu of criminalization.

And there are many district attorneys across the nation who are agreeing to divert cases, before even charging the case, to a restorative process. When it is resolved, then the district attorney declines to prosecute the case, that it has been satisfactorily done. And one of the problems with trying to get these things started is, again, resources. We do not do right by our unresourced humans in the United States, and that is a real struggle.

Thomas: Exactly. Yeah, that's my next question. I'm consciously asking some questions that might be in our society—.

sujatha: Yeah, absolutely.

Thomas: —so that we can hear your responses—.

sujatha: Well, sure.

Thomas: —and so that … You are leading me actually to, also, my next question is, when you say we want to have resourced environments and many people that suffer in the current injustice do not have those resources, or many of those resources … So how do you, as a facilitator, who hear the resources that are there and what is if they're really under-resourced systems where the resources have really been depleted, and that is also a source, as you said, of violence or any other acts.

© 2022 by Inner Science LLC. All rights reserved. No part of this recording or transcript may be reproduced or transmitted in any form or by any means, electronic, mechanical, recording, or otherwise, without prior written permission of Inner Science LLC.

So maybe you can speak a little bit to, if you have a great system with a grandmother and whatever, all the resources that a family or a circle of friends can give, so then that's great. But what if we don't have that? And what if you have a very traumatizing or traumatized environment already, how do you extract those resources then?

sujatha: Yeah. So again, it goes back to having a deep conversation, first and foremost, with the most directly impacted people—the people who've caused the harm, the people who've experienced the harm—and really mapping their lives. Who believes in you? Where's a place you feel safe going after school? And sometimes those meetings are heartbreaking because the answer is, "Nobody. Nowhere. Nothing."

There was an eighth grader once who I was working with who had been accused of choking one of her classmates nearly to death at school and was going to be charged with this crime. I don't think that the system understood the severity of the harm before sending it my way. It was through excavating and deeper conversations with the people who witnessed and saw and were part of this that I understood how severe the harm actually was.

And in working with the child who caused the harm, the parents were like, "We're done with her. We don't wanna ... Take her away." They were upset that she was getting an opportunity to not be locked up. We couldn't find anyone. And we just kept asking and asking, "Who else has believed in you? Who else?" And the person I was co facilitating with said, "Okay, this is eighth grade. Who believed in you in seventh grade? Who believed in you in sixth grade?"

We got back all the way, third grade, second grade. And when we said second grade, the child and her parents lit up. They both were like, "Huh, my second grade teacher really liked me." And they lit up, too. They were like, "Yeah, she really loved you." And so we hunted down her second grade teacher and we brought that teacher to the circle. And that teacher then got completely involved in this child's life again, was having this child volunteer in her classroom.

All of these things happened that really changed the trajectory of that young woman's life, that girl's life. And so that can happen. So you do actually have to dig. You'd be surprised that there are actually people with resources that have been in direct contact with this person. And this is true for adults, too. We do the same thing when we're working with adults.

We sometimes have to go pretty far back, but you call somebody and say, "Oh, I remember that guy. Yeah, I'd love to help him out." And they'll show up. People

© 2022 by Inner Science LLC. All rights reserved. No part of this recording or transcript may be reproduced or transmitted in any form or by any means, electronic, mechanical, recording, or otherwise, without prior written permission of Inner Science LLC.

show up for each other, especially people who saw the light in you a long time ago. They don't want to see that light go out. So that does happen. And sometimes that does not happen.

And so sometimes we do have to have a binder of resources in the neighborhood. Is there a mentoring program that we can hook this child? Can we create that? The restorative justice facilitator cannot become all things to that child or that adult. We can't be everyone's new uncle and auntie, as much as we might want to. And that's actually a part of the personality, I think, that comes to this work.

So sometimes it's accessing resources that already exist. Programs, afterschool programs, this, that, the other. This child needs to join a sports team instead of hanging out on that street corner. This adult needs a violence intervention program that will help them better understand their behavior. So sometimes we're resourcing with resources.

But what I want to say is that I think a lot about the three roots that my teachers come from, the three areas that I've learned the most from. First and foremost, Mennonite people. They're similar to Amish people here in the United States. Navajo. My Navajo teachers, Diné people, particularly Chief Justice Emeritus of the Navajo Supreme Court, Robert Yazzie.

And then in my own, there's an Indian tradition of Buddhism, the Nalanda tradition. Nalanda tradition was kept alive by Tibetan Buddhists; was lost to India, but kept alive by Tibetans. And so when I think about the amount of oppression that these three groups of people have suffered, and I think about the notion that despite oppression that we have an individual responsibility to be our best selves ...

The external resources may never come. The oppressor may never stop. Who do I want to be despite all that? And what does it mean to teach our young people, to teach each other, how to be like, "Oh, I don't care what all you do to me. I will not be reduced to these rote behaviors that are expected. You want to turn me into that monster. I will never be that monster."

Or, "I will come out from behaving in those ways, despite the fact that you are never going to give me health insurance, you are never going to forgive all my student loans. You're never going to do that. And I am still beholden to my own path of goodness." And that feels unfair, sure.

But I know that from my own side, as someone who will never hear words from many people who have harmed me—it will never be made right, I will never get back the things that were lost to me—that there's still this incredible joy of being my

© 2022 by Inner Science LLC. All rights reserved. No part of this recording or transcript may be reproduced or transmitted in any form or by any means, electronic, mechanical, recording, or otherwise, without prior written permission of Inner Science LLC.

own best self. And so I don't want to lose sight of that either. It doesn't matter.

It's the same way that I'm like, "I don't care who else is doing that," when I talk to my son. "Who do you want to be? I don't care who did whatever. Who do you want to be under these circumstances?" And I think that that's also actually a piece of the work that there's quite an amazing ... As much as it's collective, collective, collective in restorative justice, there is still a place for individual uprightness under impossible circumstances. And the pride that comes from that, that's a fire that can do all kinds of good in the future.

Thomas: Yeah, that fire, I can definitely feel from you. You're radiating that. That's so beautiful. It's so refreshing to listen to you. And to summarize something for myself that I hear from you, in order for you to see if that relates to your experience, so what I am hearing is, in mapping the relational resource environment, we actually also map the inner architecture of the person, which is in interdependence with the external.

So let's say the teacher is relating to a lit up part in the nervous system of the person. When the person touches into that part, they are more relational than they touch a traumatizing part of all the other school years where the teacher didn't like me and I contract. So basically, well, for me, you are describing kind of an external-internal, which is interdependent mapping of the resources.

So by going through somebody's life, we actually touch into, "What are the parts of me where I'm relational, where I can feel myself and I can feel you?" And that's why that part can reconnect me to a restorative process. And I'm just curious if you would agree to that because—

sujatha: Yeah, absolutely.

Thomas: —because that's really powerful. That means that when we find access to the parts in everybody where that's happening, so that's the channel through which restoration can actually be received also inside. Because often it's not happening because it touches us where we get shamed, blamed, whatever, discredited. But if we find a different entry to the core of a person, that's where we want to grow.

That's what's naturally built into everybody. And I hear, when I listen to you, I hear a sophisticated way to find access to where restoration can happen, and then that's transformational and life-changing. Maybe you want to comment a little bit on what I'm saying now.

© 2022 by Inner Science LLC. All rights reserved. No part of this recording or transcript may be reproduced or transmitted in any form or by any means, electronic, mechanical, recording, or otherwise, without prior written permission of Inner Science LLC.

sujatha: Yeah, absolutely. One of the things that occurs to me is some of the best restorative justice facilitators I know, one by the name of Ashlee George, always starts these meetings with the person who's caused harm. She opens and they're like trepidatious and they're like, "I'm in trouble and they're going to talk to me about the thing I did wrong." And she starts with like, "What lights you on fire? What makes you feel good? What are you good at? When do you feel good about yourself?"

These are the questions the whole process starts with, and people might hear that and be like, "I'm sorry, somebody robbed somebody and you want to start with, what do you like?" It helps open up the possibility of those connections you're talking about. So now that we're talking with this young man who had stolen some cars and stripped a bunch of cars and was getting initiated into a process of doing a lot of harm with a group of other people, and finding out that he's an excellent artist.

And what was really interesting in that process was also in the end, this thing that one of the people he'd harmed asked for was a painting. To repair the harm they wanted him to paint this big, beautiful thing. And then connecting him to community-based artists who would help him hone his art. And so that growth, it's a really remarkable thing.

So absolutely. Plus that individual spark that is in every single one of us, even if it's been under layers and layers of harm and oppression that have been caused to you before you go out and cause some more harm. It's there, it's always there, and then ... You can't really fan that flame yourself. You need other people fanning it.

Thomas: Exactly.

sujatha: And finding the right people to fan it, it's really a beautiful thing.

Thomas: Yeah, that's beautiful, because that actually adds another step that then we reconnect that research we found to something in the community where the person can express that and feel like a positive upward cycle again in the society because it's energized. So that's really beautiful. And I have a few more questions. We heard you speak a lot about the I-thou and the relational aspect of the people involved.

I'm also curious because I think every violence, every crime, can be seen as within that relational context, or can be seen also as part of the Third Side, as William Ury calls it, can be part of the community.

So how am I involved in the crimes that are happening in my neighborhood? What is my unconscious contribution? Maybe not even conscious, but my unconscious contribution through my own absence where I can't feel something, where I don't

© 2022 by Inner Science LLC. All rights reserved. No part of this recording or transcript may be reproduced or transmitted in any form or by any means, electronic, mechanical, recording, or otherwise, without prior written permission of Inner Science LLC.

notice things, or where I don't act when actually my action is needed in order to spark something or prevent something.

And I'm curious how restorative justice speaks to the community responsibility. Like there is the responsibility in everybody directly involved, but then how do we—as the we—participate through the eyes of restorative justice in the restorative process? So maybe you can speak a little to that, or how you look at that, maybe.

sujatha: My work in the broader ... So there's two different ways to think about restorative justice; there's like the big restorative justice, and then there's the very, like ... I'm a lawyer by training, right? And so I think about specific harms and how we heal them, but there is a bigger picture of people learning to sit in circles, in dialogues and conversations at the community level and talk about what is happening here and how are we connected to one another?

And so I think one of the most important things is that, like I get stuck answering this question with regard to my individual processes because we have become so broken as a society that most of us don't even know our neighbors' names. Most people don't know their neighbors' names. And so to say, "How can I pull people in when they don't even know that I exist?", is a big problem.

And so I think one of the things that we just need is more civic engagement and involvement, not just at a political level, but just at a community level. We need more barbecues. We need more street fairs. We need to really bring that back. It's hard to imagine how to fold people into restorative processes on the individual level without the preexisting relationship, because they feel like outsiders at that point. And so for me, it is about building deep relationship.

So last night this family in the neighborhood that we've known for a long time stops by. I know they've been in various forms of crisis, and I know my son has homework. I know that he is not done. I know that that kid wants to get to know my kid better. There is a teenager in crisis sitting on my back porch in a pandemic. That is emotional for me. That is more important than my son's grades.

And if we can't get there, then, oh, goodness, we're doomed. Because I can see two different roads that this child is going to go down, the one who was sitting on my porch. And I'm in love with that kid and I want to see him do well. I'm sorry. See her do well, to use her proper gender pronoun, which is a part of what's been going on in this family. And I want to see her flourish. I want to see her thrive.

And so for me, I can't say homework is more important than that. Can't say what time dinner is happening is more important than that. Cook some extra food and

© 2022 by Inner Science LLC. All rights reserved. No part of this recording or transcript may be reproduced or transmitted in any form or by any means, electronic, mechanical, recording, or otherwise, without prior written permission of Inner Science LLC.

hope that they'll stay. That's the work. And so only then if something's going wrong would they think to give me a holler, even though I'm like this internationally known expert in the field, right?

That's not what neighbors know. They know whether or not they got to hang out on your porch a little longer. They know whether or not you offered them dessert, right? So I wish for us more time to build those kinds of relationships, to stop thinking that my kid getting a good grade on something is more important than building those relationships.

I don't know if that really answered your question, but that's a part of the work that we really need to be doing. We've become so polarized. What does it mean to just ... I have a challenging relationship with another one of my neighbors. We have a huge language barrier and I think that they've misunderstood things, that I've misunderstood things.

And it's been like 12 years of just continually being like, "Hi," and trying, and they have a new dog and I'm like, "Oh, maybe our dogs can play together." And understanding that it's always going to be problematic because of the language barrier, but also just the continued smile. The continued reaching out. The continued taking over a bread at the holidays that I baked. Trying to do those kinds of things.

We need so much more of that in our society, even at the risk of being humiliated by rejection. I think that's one of the most important things. Like, they may glare at me and wonder why the heck I'm handing them this bread, right? And I have no language skills to explain. Whatever. It's a holiday in my culture, maybe not in your culture, I don't know what's happening here.

But it's those risks that we have to take to get to loving engagement with people who ... Strangers can very quickly turn into enemies if we don't sow seeds of love. And misunderstandings can grow, especially in close quarters. There're frustrations that can grow from construction jobs that never end or late night music blasting or whatever. So we have to really learn to love each other through those kinds of things.

Thomas: That's beautiful. And of course it answers my question, mainly also through the way it touched you. And I think that shows also the power of your heart, that the relationships and noticing somebody in crisis, or somebody who needs simply support right now. And that's a very important micro moment that says a lot about the macro movement. You know, I think that that's really ...

It touched me that it touches you so much. I love it because I think that's a very

© 2022 by Inner Science LLC. All rights reserved. No part of this recording or transcript may be reproduced or transmitted in any form or by any means, electronic, mechanical, recording, or otherwise, without prior written permission of Inner Science LLC.

healthy sign of your involvement, even if you are globally involved, it also counts how you live your life at home, and that's what you showed right now. And I think that's very powerful, that we can notice the moments when somebody needs us and that it really needs us and we don't live kind of our regular life and we miss those moments.

And I think that's exactly what I meant, that's beautiful. And so from that micro situation, one could say—which I think is very essential because that's the specific situations that we live in our daily life—if you look now, there's mass incarceration. There are many things that are collective that are huge.

And how do you see the path of restorative justice and its expansion meeting the needs in our society? What are the kind of counter movements that you face in society that seem like stopping the expansion? Or, I don't know. Maybe you can speak a little bit to, how do we address now the collective issues and what's the power of restorative justice at the moment, in let's say, in the U.S.?

sujatha: I think it's important to understand roots, and so starting with the fact that mass criminalization is born of the enslavement of African Americans and the taking of Indigenous lands and the repression of labor movements. Like, the police in the north began as repression of labor movements and in the south as the patrolling of people who are trying to escape slavery.

That is what these institutions were born of. And so they are infected with these things. And number two, I think that the whole impetus to say, "Oh, if somebody does some horrible thing to another person, we are going to do some more horror to that." That is a very base and limbic response, and not an enlightened one. And so that is what we have built here.

We have built adding trauma to trauma, thinking that that wasn't going to multiply the trauma. And that is what we have done. And so it is hard in the midst of ... I mean, again, I used to represent people who are charged with capital crimes. I've seen autopsy photos of the worst things that humans do to one another. I have worked on cases of the distribution of child sexual abuse images.

I've seen hundreds and hundreds of these photos. Horror, pure and total horror, when you are faced with these things. And I have to resist the limbic response to want to take a hammer to these things. A hammer will not solve this. And so what does it mean to be self-regulated enough as individuals, but be self-regulated enough as a society to come up with responses that will produce the outcomes we want? What do we want?

© 2022 by Inner Science LLC. All rights reserved. No part of this recording or transcript may be reproduced or transmitted in any form or by any means, electronic, mechanical, recording, or otherwise, without prior written permission of Inner Science LLC.

We want safer societies. What do we want? We want less re-offense. What do we want? And so does anything we designed actually move us in that direction when we have 68, 70% recidivism rates through our current system? If there were a safety device—and I hate to use this capitalist sort of idea—but if there were a safety device that was designed to keep us safer that failed or made things worse 70% of the time, that would be taken off the market, right?

But we are spending billions and trillions of dollars in the United States on a safety device that makes us less safe. If you even buy the story that it is a safety device and not a device of social control, which I am more and more ... Not more and more. Have always known is true. Even as a child I knew not to tell the police about my father. And so what do we need?

We need data, I think, in some ways is a part of what we need. I know that that may sound like a strange answer, but people are quite moved by the notion that these alternatives are actually alternatives, these beautiful systems that are much more effective. That's actually compelling to people. I think we need experiments. I think we need to be brave, okay?

So people are like, "What's going to happen if we do a restorative justice process in this murder case?" And I'm like, "Well, what's happening when we do incarceration with that murder case? Actually, what's happening? What's happening when we try to do incarceration with that rape case?" Well, guess what? Less than 2% of people who are even on the radar of the system get convicted.

So what's the current thing? Can we be creative? Can we be creative and come up with gorgeous outcomes and start to prove, over time, that these other ways of doing things, that these wiser ways, that these ways that align with our interdependent nature, are actually going to heal us and move us forward in a good way? And so systemically, what that looks like to me?

I am not one to dismantle. I made efforts at that. I'm very moved by Audre Lorde, the quote, "You can't dismantle the master's house with the master's tools," is what she says. And I think it's even more foolish to try to convince the master to dismantle his own house with Indigenous people's tools and Mennonite's tools. So I trust the dismantlers to do what they need to do.

I trust the people to sue the prisons and to do whatever they need to do to try to reduce the harm that the system is doing. That was not my path. That was my path for a while and I stepped off from that path to try to do something else. So the analogy I really like is that McDonald's is quite unhealthy and they're all over communities of color. And here they are, and people are like, "This is food."

© 2022 by Inner Science LLC. All rights reserved. No part of this recording or transcript may be reproduced or transmitted in any form or by any means, electronic, mechanical, recording, or otherwise, without prior written permission of Inner Science LLC.

And I'm like, "That's not food. That's unhealthy." What does it look like to build a community garden next door where we're offering better food and there's music and there's a barbecue and there's dancing? And we walk past that to get to McDonald's. How do we lure people into these other ways of doing things? I myself don't call the police. I don't go to punitiveness when I've been harmed, right?

If I can ... I'm not trying to shame anyone who does, and I understand that if you're in the middle of some horrific situation and you feel that you need to pick up the phone to protect yourself, I do truly hope that you will actually be protected in that moment and that people will arrive that can protect you. In my experience that has never occurred, and I know many, many people who have not been protected.

And so for me, what does it look like for us to build our own society of protectiveness such that continues to grow and grow and grow? And my work in that is not to ignore the fact that the system exists, right? Can I convince these new progressive district attorneys to divert cases? The kid's been arrested, the person's been arrested, but they have not been charged with the crime. Give them to us.

Let us take care of it. We'll do a better job than you, and let's show that. And so can we start to build these kinds of experiments? And then the other work I do is entirely off the grid, where people can just call directly and be able to receive an opportunity for restorative justice without engaging the system at all. We have to grow these things. Somebody came up with the notion.

It was actually, unfortunately, Quaker people I believe were responsible for the entire notion of a penitentiary. The inception of this idea was that people would have somewhere to go to be penitent when they had caused harm, and that has turned into quite a monstrosity, right? But somebody came up with these ideas. What if we came up with our ideas and started to grow them?

I live by this motto of, "a seed never sees the flower." I'm trying to do something that might happen in 50, 100, 200 years. I don't have an expectation that I will, in my lifetime, see the end of mass criminalization in the United States. I have a hope, I have a wish, but I'm 51 so I don't really think that's happening in my lifetime. I hope that we are planting really solid seeds and that we are starting to figure out how to nurture those seeds in a way that future generations can.

Sometimes I think what I do, my entire work is cave paintings. I'm painting them now knowing that they're going to be cave paintings. So what kinds of materials do we need to work with today so that they are cave paintings for the future? So they can't be erased? Yeah, those are some of the things I think about.

© 2022 by Inner Science LLC. All rights reserved. No part of this recording or transcript may be reproduced or transmitted in any form or by any means, electronic, mechanical, recording, or otherwise, without prior written permission of Inner Science LLC.

Thomas: That's so beautiful. I think that also rounds up our conversation beautifully. These were very wise words, and I'm also very interested in any kind of collaboration where collective trauma work and restorative justice and your work and ... Support each other to grow or to paint these cave paintings together. I think that would be really lovely because I think understanding the collective trauma field more and re-relating it to social healing, I think that that's a very good combination.

So I would love that, to stay more connected to your work. And I feel so inspired. I listen to you and I can feel the transmission of your passion and your love and how ... Your big heart and your strong spirit. So that's really nourishing and I wish you all the best with your work. And thank you so much for this time, but I would love to stay in conversation.

sujatha: I would love that, too. Yeah. Thank you so much. And thank you so much for having me be a part of this. I've heard ... So many people post it every year.

Thomas: It's wonderful what you brought. I think it's a great contribution to the Summit.

sujatha: Oh, I'm so glad. Yes, let's do keep in touch. Thanks so much. Yeah.

Thomas: Yeah. Thank you.

sujatha: Bye-bye.

Thomas: Bye-bye.

© 2022 by Inner Science LLC. All rights reserved. No part of this recording or transcript may be reproduced or transmitted in any form or by any means, electronic, mechanical, recording, or otherwise, without prior written permission of Inner Science LLC.